Argument against Measure K - Milpitas business license tax

[Argument starts here]

Stop this huge new tax hike!

City of Milpitas councilmembers are letting their greed show. Either that, or they don't understand the reality:

Businesses don't pay taxes.

What?!

Businesses **create jobs, and goods that we value**, and services we need. But they have **countless expenses** and considerations, to accomplish all that.

You ask: How can it be that businesses "don't pay taxes"?

Taxes are just another cost of doing business, which owners **must pass along, to *stay* in business**. They pass costs along to…

- Customers, through higher prices;
- Employees, through lower wages/salaries; or
- Shareholders, through lower returns on investments (*e.g.*, our 401(k)s or IRAs!)

Remember the gigantic tariffs on imported electronics? how our favorite gadgets' prices spiked?

Gadget businesses *necessarily* **passed the tariff expense along to us**, through **higher prices.**

That illustrates a fundamental law of economics — like gravity. But it's not just economists who feel those effects in everyday activities, like shopping or filling up the tank.

The **cost of living** here is **already *too high*. Nothing seems affordable!**

Businesses **create goods and services** that *people want.*
Businesses **create jobs** that *people want.*

Their outputs are *amazing* — enhancing so many lives.

Don't trust politicians who would penalize businesses — the engine of our extraordinary standard of living — in order to fund pet projects.

If Measure K passes, Milpitas business owners who fall behind because skyrocketing taxation pushes customers away, may hatch plans to relocate to cities that appreciate them more.

Don't tax what you want *more* of.

Want more goods and services available at lower prices? Want more jobs to be available, at higher wages/salaries? Then please:

Vote NO.

Let's not penalize job and product providers! They help *us*, immeasurably, **every day.**

Now let's help them:

Vote *NO!*

Silicon Valley Taxpayer Association's volunteers advocate for taxpayers *throughout* Santa Clara County. Visit *SVTaxpayers.org*.

[Argument ends here]

City Clerk's Office
AUG 11 2026
RECEIVED

City Clerk's Office
AUG 11 2026
RECEIVED

County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Milpitas

Primary Argument due date (E-84): August 11, 2026
Examination Period (E-83 to E-74): August 12, 2026 to August 21, 2026

Rebuttal Argument due date (E-77): August 18, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

SECTION 1: ARGUMENT INFORMATION

Measure Letter -K- (if available – letters will be assigned after 5:00 p.m. on E-88)

Select the Type of Argument you are Filing

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent

SECTION 2: AUTHOR INFORMATION

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

Please Select the Applicable Line

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** -K- being submitted. I oppose this measure.

SECTION 3: ARGUMENT TEXT

SUBMITTER SECTION

The Submitter of a Primary Argument is the person who delivers the argument and any supporting materials to the County of Santa Clara Registrar of Voters (ROV). If there is a question or issue with a submission, the ROV will contact the Submitter. The Submitter may also be a Filer or Signer but does not have to be. The ROV asks for Submitter contact information so that the ROV has a contact person for questions about the submission. ***The submitter's name is not included in any of the election materials.***

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

*** Required information.**

I am the **SUBMITTER** of the primary argument.

My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☐ **Residential or Residential Mailing;** ☑ **Business or Business Mailing**

* Address [redacted]

* Email Address: [redacted] Phone Number (cell/direct) [redacted]

PLEASE ATTACH A COPY OF YOUR PRIMARY ARGUMENT TO THIS FORM AND FILL OUT THE APPROPRIATE SIGNER FORMS FOR EACH FILER OR SIGNER ON PAGES 3 AND 4

The text of your primary argument will be printed exactly as submitted. Type your primary argument with the desired formatting. Ensure that your primary argument meets the legal word limit of 300 words. You may request that specific text is printed in bold, italic, or bold italic font type.

The County of Santa Clara Office of the Registrar of Voters uses standard typefaces, font sizes, headers, and bullets in all measure related documents.

PLEASE REFER TO PAGE 7 - SECTION 6: APPENDIX A - FOR MEASURES FORMATTING GUIDELINES (FORMATTED INTO A STANDARD 2-COLUMN PER PAGE TEMPLATE)

INSTRUCTIONS FOR PRIMARY ARGUMENTS SUBMITTED BY AN ORGANIZATION OR BONA FIDE ASSOCIATION OF CITIZENS

For any primary argument submitted on behalf of an organization or bona fide association of citizens, the "Primary Argument Signer Form" must be completed by a principal officer of the organization or bona fide association of citizens and the organization must submit one of the following:

- its articles of incorporation, articles of association, partnership documents, bylaws, or similar documents;
- letterhead containing the name of the organization and its principal officers; **OR**
- if the organization or association is a primarily formed committee established to support or oppose the measure, its statement of organization (FPPC Form 410) filed pursuant to Government Code § 84101.

PRIMARY ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of **their** knowledge and belief. **You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.**

PLEASE NOTE: If the primary argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☐ **Residential or Residential Mailing;** ☑ **Business or Business Mailing**

* Address: [redacted]

* Email Address [redacted] Phone Number (cell/direct) [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☐ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☑ Other: Sex: Female

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Elizabeth C. Brierly
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Director, Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	RO[redacted]NED SIGNATURES (signatures will be redacted prior to posting online)

PRIMARY ARGUMENT SIGNER FORM FOR SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of **their** knowledge and belief. **You may use as many copies of the SIGNER ONLY FORM as needed to cover every SIGNER.**

PLEASE NOTE: If the primary argument signer form is handwritten or a revision is unclear, the County of Santa Clara Office of the Registrar of Voters staff will interpret the handwritten information to the best of their abilities. That interpretation is final.

SIGNER SECTION

The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide (CVIG) in the election materials after the argument as one of the signatories. State law allows for up to five signers. Signers may also be Filers, although they do not have to be. Signers sign to endorse the argument under which their signature appears. Signers sign the argument submission form, attesting under penalty of perjury that they meet the requirements to sign an argument.

*** Required information.**

I am a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:** ☐ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☑ Other: Sex: Female

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Elizabeth C. Brierly
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Director, Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	R[redacted] **SIGNED SIGNATURES** (signatures will be redacted prior to posting online)

SECTION 4: LIST OF MEASURE SUPPORTERS OR OPPONENTS TO APPEAR ON THE OFFICIAL BALLOT LABEL

To calculate the 125-character limit, **please type in names and titles only. The worksheet below will auto calculate the spaces between and before names, as well as the semicolons and spaces.** The list must be provided with the appropriate spacing for all names and titles to ensure translations into other languages read properly. Use the worksheet below to ensure your character count meets the required criteria.

PLEASE REFER TO SECTION 6: APPENDIX B FOR GUIDELINES REGARDING SUPPORTERS AND OPPONENTS

PLEASE NOTE: SUPPORTERS AND OPPONENTS LISTS ARE ONLY SUBMITTED WITH THE PRIMARY ARGUMENT

LIST OF NAMES *[check one]:* ☐ I am submitting a list of Supporters **OR** ☑ I am submitting a list of Opponents

LIST OF INDIVIDUALS, ASSOCIATIONS, NONPROFIT ORGANIZATIONS, AND/OR BUSINESSES	# of Characters	GENDER
Silicon Valley Taxpayers Association;	36	☐ masculine ☐ feminine ☐ androgynous or non-binary ☐ other: N/A
;	0	☐ masculine ☐ feminine ☐ androgynous or non-binary ☐ other:
;	0	☐ masculine ☐ feminine ☐ androgynous or non-binary ☐ other:
;	0	☐ masculine ☐ feminine ☐ androgynous or non-binary ☐ other:
	0	☐ masculine ☐ feminine ☐ androgynous or non-binary ☐ other:
GRAND TOTAL (not to exceed 125 characters including semi-colons and spaces between names and titles)	36	

Every individual, association, nonprofit organization, or business listed as a supporter or opponent above MUST sign the consent form included in Section 5, page 6.

You may use as many copies of the consent form as needed to cover every supporter or opponent listed above. If the list above or the consent forms do not meet the requirements of Elections Code § 9170, the elections official will require the proponent or submitter of the argument to resubmit supporting documentation by 5:00 p.m. on E-82 [Date: _____] to meet election related deadlines.

Proponent's Initials: EB **I UNDERSTAND**, that if I am told that the list of supporters/opponents above and the related consent forms do not meet the requirements of Elections Code § 9170, and I do not resubmit the documents, only supporters or opponents who are verified as meeting the requirements of Elections Code § 9170 will be printed under the ballot label.

REQUIREMENTS IF NO LIST OF SUPPORTERS OR OPPONENTS IS SUBMITTED

FILL OUT THIS SECTION ONLY IF NO LIST WILL BE SUBMITTED

If no list of supporters/opponents is provided by the proponents or opponents of the measure, or there are none that meet the requirements of Elections Code § 9170, "Supporters/Opponents" shall be followed by "None Submitted" on the ballot label. Please indicate below that no list will be submitted, as applicable:

☐ A list of Supporters **will not be** submitted by the Proponents or Submitter of the argument in favor.

☐ A list of Opponents **will not be** submitted by the Proponents or Submitter of the argument against.

SECTION 5: BALLOT LABEL SUPPORTER/OPPONENT CONSENT FORM

This page may be copied as many times as needed so that a consent form is submitted for every supporter or opponent. Every supporter or opponent must sign their own consent form, and that form must be included in your submission.

SUPPORTER/OPPONENT CONSENT FORM

Note: if an individual uses the name of an association, nonprofit organization, or business in their title to be included in the list of supporters or opponents, a representative of that association, nonprofit organization, or business must complete this consent form. The individual supporter/opponent and the representative may be the same person* if appropriate. *If no representative of the organization or business completes this form, individuals may only use an honorific (e.g. "Dr.," "M.D.," "Ph.D.," or "Esquire") and no title that includes an organization or business name.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

*** Required information.**

Full name of individual OR representative of association, nonprofit organization, or business (print or type):

*** My Name is:** Elizabeth C. Brierly

INDICATE IF ADDRESS IS: ☐ **Residential or Residential Mailing;** ☑ **Business or Business Mailing**

* Address: Silicon Valley Taxpayers Association, [redacted]

Email Address: [redacted] Phone Number: [redacted]

*** This individual OR association, nonprofit organization, or business:**

1) ☐ Supports or ☑ Opposes the measure.

[If an association, nonprofit organization, or business is listed as a supporter/opponent on Page 5 or used in an individual's title on Page 5, please fill out the below as well as the above]

*** This association, nonprofit organization, or business:**

1) ☑ Has been in existence for at least four years.

2) ☐ Was not originally created as a committee described in Government Code § 82013.

* My **GENDER** is:

☐ Masculine / ☐ Feminine / ☐ Androgynous or Non-binary / ☑ Other: Sex: Female

* My **SIGNING ORDER** on the Ballot text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

SIGNATURE *	Under penalty of perjury, I attest the above information is true and accurate to the best of my knowledge:
	[redacted]
	ROV O [redacted] **ED SIGNATURES** (signatures will be redacted prior to posting online)
	Date

PRIMARY ARGUMENT SIGNER FORM FOR FILER / SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of their knowledge and belief. You may use as many copies of the FILER / SIGNER ONLY FORM as needed to cover every FILER / SIGNER.

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FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required Information.**

I am the **FILER** of the primary argument: ☐ Yes / ☑ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Joe Dehn

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

*** Address** [redacted]

*** Email Address:** [redacted] Phone Number (cell/direct) [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other:

*** My SIGNING ORDER** on the Argument text to be published is: ☐ 1 / ☑ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Joe Dehn
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Chair, Libertarian Party of Santa Clara County
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument: [redacted]
	ROV ONLY: WET-SIGNED SIGNATURES (signatures will be redacted prior to posting online)

PRIMARY ARGUMENT SIGNER FORM FOR SIGNER ONLY

The undersigned author of the attached primary argument hereby states that such primary argument is true and correct to the best of **their** knowledge and belief. You may use as many copies of the SIGNER ONLY FORM as needed to cover every SIGNER.

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*** Required information.**

I am a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:** ☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☐ 1 / ☑ 2 / ☐ 3 / ☐ 4 / ☐ 5 *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Joe Dehn
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Chair, Libertarian Party of Santa Clara County
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
[redacted]	
	SIGNED SIGNATURES (signatures will be redacted prior to posting online)